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IN THE UNITED STATES DISTRICT COURT

DISTRICT OF ARIZONA

United States of America	)	Case No. CR 12-177-PHX-PGR DKD
	)	
Plaintiff,	)	
	)	DEFENDANT'S MEMORANDUM IN SUPPORT
vs.	)	OF PRETRIAL RELEASE
	)	
Ivhan Herrera-Chiang,	)	
	)	
Defendant.	)	
	)	

COMES NOW the Defendant, Ivhan Herrera-Chiang, by and through undersigned counsel, tenders his Memorandum in Support of Pretrial Release to this Honorable Court.

The gravamen of the Memorandum is three-fold: (1) that he has multiple job offers in the State of Arizona and/or very close to the State of Arizona (in Calexico, California); (2) that he has family members willing to take him into their home in either Yuma, Arizona or Calexico, California, said homes having land line capability; and (3) and although the issue of the voluntariness of his statement is more appropriate in another Court, Defendant denies any knowing complicity with any form of drug trafficking.

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1 RESPECTFULLY SUBMITTED this 1st day of February, 2012.

2 PHILIP A. SELOW, ESQ.

3
4 By: s/Philip A. Seplow
5 Philip A. Seplow, Esq.
6 Attorney for Defendant

7 CERTIFICATE OF SERVICE

8 X I hereby certify that on February 1, 2012, I electronically
9 transmitted the attached document to the Clerk's Office using the
10 CM/ECF System for filing and transmittal of a Notice of Electronic
11 Filing to the following CM/ECF registrants:

12 Dominic Lanza, Esq.
13 Assistant United States Attorney

14 X I hereby certify that on February 1, 2012, I served the
15 attached document by e-mail on the following, who are not registered
16 participants of the CM/ECF System:

17 Elena Hernandez
18 Pretrial Services Officer

19 S/ Philip A. Seplow

20 **M E M O R A N D U M**

21 Ivhan Herrera-Chiang was born on the 10th day of May, 1982,
22 in Mexicali, Baja California, Mexico. In July 2004 he became a
23 naturalized citizen. He attended junior high and high school in El
24 Centro, California, and at the age of 18 years he enlisted in the
25 United States Marine Corps. He served his country from 2000 through
26 2004 and although residing in San Diego, California, served seven
27 months in Iraq. A copy of his Honorable Discharge is attached hereto
28 and listed as Exhibit "1".

He attended community college after being in the Marine
Corps and then was hired by the United States Border Patrol in August

1 of 2006. He then moved to Yuma, Arizona. He married his wife,
2 Pamela Herrera, in June of 2007. The couple have two sons, ages 3
3 and 1. In June of 2010, Ivhan and Pamela purchased their 3478 West
4 27th Place residence in Yuma, Arizona. They have resided at the 3478
5 West 27th Place residence since June of 2010.

6 Although the pretrial services report states that Pamela
7 and Ivahn would travel frequently to Mexicali, Baja California,
8 Mexico, to visit relatives, the Defendant, if he has not already, is
9 willing to surrender his passport and will make a pledge to this
10 Court that he will not leave the State of Arizona or the vicinity of
11 Calexico, California, U.S.A.

12 Ivhan's parents, Carmen Herrera and David Herrera, live at
13 986-A Rio Seco Street, in Calexico, California (92231). They can be
14 reached at 660-357-2998. Carmen and David Herrera, if they do not
15 have a land line at this time, are more than willing to obtain a land
16 line so that their son can be released on an ankle bracelet.

17 If this Court was to release the Defendant, he has two
18 options for employment:

19 Option 1 is JLH Import and Export, Inc., which is a
20 warehouse service located at 413 Rood Road, Suite 8, Mexport Business
21 Center, Calexico, California 92231. Attached hereto and listed as
22 Exhibit "2" is a letter from Chris Mendez, the General Manager of JLH
23 Import and Export, Inc.

24 The sum and substance of the letter is as follows:

25 Please have this letter serve you as an offer of
26 employment for the above referenced person Ivhan
27 D. Herrera-Chiang as a warehouse dispatcher, he
28 will be in charge of handling merchandise for
our customers and input data into the system, he
will be [paid] \$9.25 per hour and will be
working 40 hours per week.

1 Option 2 would be to work for WaterTech Ag Supply located
2 at 2610 East 16th Street, Yuma, Arizona 85365. A copy of the Water
3 Tech Ag Supply January 30, 2012, letter is attached hereto and listed
4 as Exhibit "3". The import of this letter is as follows:

5 Please have this letter serve as an offer of
6 employment for the above referenced person, Ivan
7 D. Herrera in maintenance. He will earn \$8.00
8 per hour and will be working 40 hours per week.

9 We feel he is a person of good moral character
10 and will be a great asset to this company.

11 The charges against defendant Herrera are very serious, and
12 the Defendant understands that. However, he has two children who are
13 American citizens and live in the United States. His parents live
14 in the United States. His wife hopes to be an American citizen one
15 day and lives in the United States. He is willing to surrender his
16 passport.

17 Defendant will pledge to this Court that if he is released,
18 he will live up to the conditions of release, whatever this Court
19 sets.

20 Of course, at all times the presumption of innocence
21 protects the Defendant, Ivhan Herrera-Chiang, from being labeled a
22 convicted criminal at this time. That is part of the reason why this
23 Court should accept the pretrial services report, which recommends
24 that the Defendant be released after the posting of a \$50,000 cash
25 bond. Undersigned counsel is not sure whether the family can post
26 the \$50,000 cash bond, but probably a more effective way of locating
27 the Defendant and insuring his appearance at trial would be to have
28 him wear an ankle bracelet with a GPS monitor.

 The Defendant's risk of danger to the community is nil.
If one is to believe what the United States government has accused

1 the Defendant of doing, he is no longer in a position to engage in
2 that type of activity (endangering the security of the border).
3 Probably the most important factor for this Court to consider is the
4 possibility of nonappearance, but with a cash bond, an ankle bracelet
5 or a GPS monitor and the fact that his immediate family lives in the
6 United States, the risk of nonappearance dims.

7 Although the facts of the case should not be controlling
8 at this time, because the government is alleging that the Defendant
9 is involved with a drug trafficking organization, the one thing that
10 Ivhan Herrera-Chiang adamantly tells the Court, and would tell
11 anybody else, is that he had no desire to help a drug trafficking
12 organization. The worst that could be said of Ivhan, by people who
13 know him, is that he may have had a big heart and may have helped a
14 friend's relative seek freedom in the United States, but that has yet
15 to be proven.

16 Any allegations that the Defendant wanted to injure
17 government confidential informants is categorically denied.

18 Thus, for the reasons set forth herein, it is requested
19 that the Defendant, Ivhan Herrera-Chiang, be released on a moderate
20 bond or to pretrial services and if appropriate, with an ankle
21 bracelet with or without a GPS system pending trial.

22 DATED THIS 1st day of February, 2012.

23 PHILIP A. SELOW, ESQ.

24
25 By: s/Philip A. Seplow
26 Philip A. Seplow, Esq.
27 Attorney for Defendant
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